



Data Protection Policy

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Version Control			
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V1 April 2025	V2	August 2026	Significant changes to update the policy in line with TEC's academic management and governance structure and policy formatting and structure house style.

Contents

1.	Introduction.....	3
2.	Purpose and Scope.....	3
2.1.	Office for Students Registration.....	3
3.	Aims and Objectives	4
4.	UK GDPR.....	5
5.	Individual Rights	6
6.	Data Subjects.....	6
7.	Key Data Protection Roles	6
8.	Third-Party Data Disclosures	7
8.1.	Lawful Bases for Disclosures (Article 6 and Article 9 UK GDPR)	7
8.2.	Special Category Data	7
8.3.	Disclosures with Consent.....	8
8.4.	Disclosures without Consent	8
8.5.	Mandatory Disclosures	9
9.	Consent	9
10.	References.....	9
11.	Subject Access Requests	10
11.1.	Exemptions when responding to SARs	11
12.	Direct Marketing	11
13.	Data Breaches	11
14.	Data Log	12
15.	Data Protection Impact Assessment (DPIA)	13
15.1.	DPIA Process	13
16.	Complaints	14
17.	Information Security	14
18.	Training.....	14
19.	Annual Report	14
	Appendix 1 Subject Access Request Form (SARF)	15
	Appendix 2 Data Breach Report Form	16
	Appendix 3 Data Log	17

List of Tables

Table 1	Trent Education Centre's ICO Registration.....	3
Table 2	Seven Principles of UK GDPR	5
Table 3	Article 6 UK GDPR Lawful Bases for Disclosures	7
Table 4	Article 9 UK GDPR Lawful Bases for Disclosures	7
Table 5	Exemptions Under Schedule 2 DPA 2018	11
Table 6	Data Log Sections and Types.....	12

1. Introduction

As a further and higher education institution, Trent Education Centre (TEC) is required to collect, process, share, and retain personal data on individuals as an essential part of its operations. This includes data relating to applicants, students, graduates, alumni, staff, independent members of boards and committees, and other stakeholders, collectively referred to as 'data subjects.' TEC is committed to ensuring that all its handling of such data is carried out legally, ethically, and transparently.

This policy sets out the principles, responsibilities, and procedures that ensure TEC's full compliance with the Data Protection Act 2018 and UK GDPR when managing the personal data of its data subjects. It provides the information and guidance required for TEC to meet its statutory obligations and to protect the rights and privacy of all its data subjects.

2. Purpose and Scope

This policy enables all TEC stakeholders including students, staff, board and committee members and any other stakeholders to understand the rights of all data subjects in relation to the data that TEC is required to collect, process, share and retain on them in carrying out its legal and regulatory obligations as a provider of further and higher education. It also ensures that TEC complies with its legal, contractual and regulatory obligations in relation to data protection and applies the seven principles of UK GDPR as set out in Table 1 below.

This policy applies to all TEC data subjects as defined above and listed below. It applies to all further and higher education courses TEC delivers independently or in partnership with other organisations. It includes local and international students who are self-funded or sponsored and local students who are in receipt of student loan funding. This policy should be read in conjunction with the Data Privacy Notice and Consent Policy and the Data Retention Policy.

Table 1 Trent Education Centre's ICO Registration

ICO Item	TEC Details
Registration reference:	Z3126380
Date registered:	02 April 2012
Registration expires:	01 April 2027
Payment tier:	Tier 1
Data Controller:	Trent Education Centre Ltd
Data Protection Lead	(DPL) IT Manager it-support@trenteducation.ac.uk
Oversight of UK Data Protection and GDPR	Head of Partnerships and Compliance raana@trenteducation.ac.uk

2.1. Office for Students Registration

Although TEC is not currently registered with the Office for Students (OfS), an application for registration has been submitted. This policy ensures that TEC meets the expectations of the OfS, particularly Condition E2 (Management and Governance), which requires providers to have effective governance arrangements, including compliance with data protection legislation.

3. Aims and Objectives

The aims of this policy are to provide all TEC stakeholders with the information and guidance needed to ensure TEC's compliance with the Data Protection Act 2018 and the seven principles of UK GDPR. These aims are met through the following objectives:

- To provide clear information on data protection for all stakeholders including a Data Privacy Notice and Consent Policy and Data Retention Policy alongside this Data Protection Policy.
- To ensure that all staff are provided with the information they need to handle data in compliance with the Data Protection Act 2018.
- To only collect, process or retain data on data subjects when it is required to meet statutory, regulatory, contractual and quality assurance requirements unless a lawful basis permits processing.
- To not use data on data subjects for any purpose other than that for which it was originally intended unless a lawful basis permits processing.
- To obtain consent for the use of any data held on data subjects for research or marketing purposes.
- To ensure that all data collected on data subjects is accurate, up to date and complete.
- To restrict access to data held on data subjects to only those who need it for the purpose for which it was originally collected.
- To keep all data held on data subjects confidential and secure, with hard copies held in locked drawers or rooms and digital data password protected and appropriately backed up.
- To confirm the individual rights that TEC's data subjects have under the UK GDPR and the Data Protection Act 2018, and to follow the guidance provided by the ICO on how these rights must be implemented.
- To ensure TEC has an appropriately trained Data Protection Lead (IT Manager), and that Trent Education Centre Ltd is registered as the Data Controller with the ICO.
- To confirm that any organisation which requires access to data on TEC's data subjects either comply with this Data Protection Policy or have their own comprehensive policy covering all the requirements covered by this policy.
- To ensure that any breach of personal data which is likely to result in a risk to individuals' rights and freedoms is reported within 72 hours of TEC becoming aware of it to the ICO as required under Article 33 of the UK GDPR.
- To ensure that GDPR compliance is monitored by the Head of Partnerships and Compliance through a GDPR Compliance Report and Data Breach Incident Report submitted annually to the Senior Management Team, in line with the Quality Assurance Framework Stage 08 External Compliance & Regulatory Assurance.

4. UK GDPR

Table 2 provides key points that explain how TEC meets the seven principles of the UK GDPR. All TEC staff who have data handling responsibilities should refer to these principles to understand the basis for TEC's approach to the protection of data.

Table 2 Seven Principles of UK GDPR

GDPR Principles	TEC's Compliance
Lawfulness, fairness and transparency	- TEC complies with the Data Protection Act 2018. - TEC treats all data subjects equally in relation to the data TEC holds on them. TEC staff should not gather more data on one individual than others unless there are special considerations that require this such as a health or disability disclosure. - Through this policy as well as the Privacy Notice and Consent Policy and the Data Retention Policy TEC provides clear and transparent information on its data policy and procedures. All data subjects must be informed about the data that TEC holds on them, what it is for and how long it will be held. Data subjects should also be informed about their rights. See the section below on Rights in Relation to Your Data
Purpose limitation	- TEC only collects, shares and retains data for a legitimate purpose and for no other reason. - TEC does not repurpose personal data for a new, incompatible purpose unless there is a lawful basis to do so. - TEC limits itself to collecting only the data it requires on individuals in order to meet its legal, contractual and regulatory obligations. This includes sharing data with third party organisations if required, such as a partner organisation that TEC may be delivering courses for as well as awarding organisations/bodies, regulators such as the OfS or HESA and the authorities such as the police.
Data minimisation	- TEC only collects the minimal amount of data on individuals that it needs to carry out its legal, contractual and regulatory obligations.
Accuracy	- TEC allocates appropriate resources including human resources to ensuring that all the data its holds and shares on its data subjects is accurate and up to date.
Storage limitation	- TEC only stores and retains data for specific periods of time before destroying it. See the Data Retention Policy for details on how long it stores the different types of data TEC collects on individuals.
Integrity and confidentiality (security)	- TEC has secure systems and methods of storing all the data it holds including password protected storage, limited access to the data based on need only and back-up systems to mitigate the impact of any loss of data due to cyberattack or other critical incident.
Accountability	- TEC's Data Protection Policy and processes are implemented by the Data Protection Lead (DPL) it-support@trenteducation.ac.uk, quality assured by the Head of Partnerships and Compliance, raana@trenteducation.ac.uk, and audited by the Audit and Risk Committee. The HPC and ARC submit annual reports on Data Protection to the Board of Governors.

5. Individual Rights

In compliance with the UK GDPR and the Data Protection Act 2018, TEC upholds the following individual rights in relation to the personal information it collects, processes and retains:

- Right to be informed
- Right of access
- Right to rectification
- Right to erasure
- Right to restrict processing
- Right to data portability
- Right to object
- Rights related to automated decision-making including profiling

Full details of these rights and how TEC enables individuals to exercise them are provided in the TEC Data Privacy Notice and Consent Policy.

6. Data Subjects

TEC processes personal data relating to data subjects with the following roles: applicants, students, former students (graduates, alumni, deferred and withdrawn students), staff, board and committee members, external bodies (partners, awarding bodies/organisations and accreditation bodies), visitors (guest speakers and members of the public) and contractors. Full details of the roles of data subjects and the data collected for each of them are provided in the TEC Data Privacy Notice and Consent Policy.

7. Key Data Protection Roles

Trent Education Centre Ltd (TEC) is registered with the Information Commissioner's Office (ICO) as the **Data Controller** with registration reference Z3126380.

The **TEC IT Manager** is the **Data Protection Lead (DPL)** who may be contacted at it-support@trenteducation.ac.uk. The DPL, or nominated representative, advises TEC on compliance with data protection legislation, monitors data protection practices, and ensures that TEC maintains its registration with the ICO by renewing the data-protection fee annually each April.

The **Head of Partnerships and Compliance (HPC)** monitors the implementation of this policy for quality-assurance purposes, ensuring regulatory compliance is maintained. The HPC submits an annual GDPR Compliance Report and Data Breach Incident Report to the Senior Management Team.

8. Third-Party Data Disclosures

The following section explains the situations in which TEC is required and authorised to lawfully disclose personal data on individuals with third party individuals or organisations.

8.1. Lawful Bases for Disclosures (Article 6 and Article 9 UK GDPR)

TEC may disclose personal data to third parties where a lawful basis under Article 6 UK GDPR applies as illustrated in Table 3.

Table 3 Article 6 UK GDPR Lawful Bases for Disclosures

Lawful basis	Explanations
Consent	The data subject has provided explicit permission for disclosure
Contract	Disclosure is necessary to deliver education services to students or employment services to staff.
Legal obligation	Compliance, awarding body/organisation requirements, HESA/OfS statutory returns, Section 29 police requests and Home Office immigration.
Vital interests	Disclosure is necessary to protect someone's life.
Public task	TEC is performing a function in the public interest or exercising official authority.

8.2. Special Category Data

Disclosures may involve data that is classified as **special category** under Article 9 UK GDPR which includes:

- Racial or ethnic origin
- Political opinions
- Religious or philosophical beliefs
- Trade union membership
- Genetic data
- Biometric data (when used for identification purposes)
- Health data (including physical or mental health)
- Data concerning a person's sex life
- Data concerning a person's sexual orientation

Where the disclosure involves special category data, TEC must identify a lawful basis under Article 9 UK GDPR as illustrated in Table 4.

Table 4 Article 9 UK GDPR Lawful Bases for Disclosures

Lawful basis	Explanations
Explicit Consent	Required for SEND, health, mental health, safeguarding or Prevent data unless another lawful basis applies. This must be recorded in the Data Log (Appendix 3).
Substantial public interest	Including safeguarding, crime prevention, Prevent duties, equality monitoring.
Health or social care	Where disclosure is necessary for support or intervention.
Public health	Where required to protect against serious cross-border threats.
Research	Where appropriate safeguards are in place

For most disclosures of personal data, TEC relies on Article 6 lawful bases such as legal obligation, contract, or legitimate interests. Where special category data is disclosed, TEC relies on an appropriate Article 9 condition, typically substantial public interest, employment law, vital interests, or explicit consent where required.

8.3. Disclosures with Consent

Where TEC relies on Article 6 consent as the lawful basis for disclosing personal data to third parties, this may be provided verbally or in writing. However, if TEC relies on Article 9 explicit consent to disclose special category data (See Section 8.5), this must be a clear, express statement, normally provided in writing such as an email or signed declaration. See the Data Privacy Notice and Consent Policy for more details. The following points apply only to situations where consent is required as the lawful basis for disclosing personal data to third parties.

- TEC staff must not disclose any information to unauthorised third parties without consent from the data subject, including if the request for information comes from their family members or friends/sponsors who are paying the student's tuition fees.
- Staff should not disclose personal information about data subjects to other staff members unless it is for one of the purposes for which the information was collected e.g. to enhance the student experience at TEC. If asked for personal information on any data subject, staff should ask for the reason for the request and if consent has been provided by the data subject. Staff should not even confirm or deny anything about a data subject without knowing why the information is being requested or if consent has been provided by the data subject.
- When enrolling on a TEC course, all students are informed that some of their personal information relating to their performance, conduct and engagement may be requested by employers, academic institutions, or sponsors who are funding their studies. When they enrol, students are given the opportunity to opt out from such disclosures if they wish so that TEC will not share their information with these third parties. The details of students who choose to opt out should be passed to the DPL and recorded in the Data Log. Any staff providing information on students to third parties should ask the DPL to check the Data Log and confirm if an opt out is in place.

8.4. Disclosures without Consent

In other cases, TEC may not need consent to disclose personal data. Examples of these cases include:

- Students may not opt out of disclosures to third parties such as awarding body/organisations or partner organisations that are required for TEC to meet its regulatory, statutory or contractual obligations.
- Under Section 29 of the Data Protection Act 2018, TEC may disclose the personal data of individuals to the police without a court order if the police need it for a criminal investigation. Staff must not disclose personal data on individuals to the police over the telephone but must wait until TEC receives a written request from the investigating officer which explains how the request falls under Section 29 of the Data Protection Act 2018.
- Under Schedule 2, Part 1, Paragraph 5, TEC may not require consent to disclose the personal information of an individual for legal proceedings or when TEC is seeking legal advice from a solicitor.
- The DPL may disclose information without consent if it is deemed necessary because there is an emergency and a data subject is in danger.

- According to the Data Protection Act 2018, disclosures or personal data may be made to third parties if any of the following applies: National security, crime prevention or detection, tax assessment or collection, health and safety at work, protecting someone in a life-threatening situation, immigration control in relation work or study visas for international staff and students.

8.5. Mandatory Disclosures

In a third category of cases, TEC may be mandated to share or disclose the personal data it holds about individuals. Examples of these cases include:

- A court order under Section 35 (1) mandates TEC as the Data Controller to disclose personal data about individuals to the police with or without consent from the data subject.
- When registered with the Office for Students and running courses for students who apply for funding from the Student Loan Company (SLC), TEC will be legally required to confirm the registration status and attendance of students who have applied for SLC. TEC will also be required to submit statutory data returns to HESA and the OfS that include student continuation, completion and progression rates, demographic and course data.
- A request of attendance data on international students from the Home Office.

If uncertain about whether a disclosure of personal information requires consent from the data subject, staff should consult either their line manager, the DPL or the Head of Partnerships and Compliance.

9. Consent

When a student enrolls on a course they are informed on their enrolment form about the personal information TEC will need to disclose to third parties. They are also informed about disclosures that they are able to opt out of if they wish. This information is shared by admissions staff with the DPL who stores it in the Data Log. If consent is required, staff must check the Data Log to see if a student has given consent for their data to be shared. If consent for disclosures under Article 6 UK GDPR has not been given, it may be obtained on the phone or in-person verbally as long as the student is able to verify their identity. If explicit consent for disclosures of special category data under Article 9 UK GDPR has not been given, it must be obtained in writing such as a signed declaration or email for lawful disclosure to a third party. All consents must be recorded in the Data Log. Staff are informed when they sign a contract of employment about any disclosures of personal information that may be required. For more information see the Data Privacy Notice and Consent Policy.

10. References

Members of the Senior Management Team may provide staff or students with references upon request. References may only be provided if the staff or student has asked you to provide one for them. Staff may refuse to provide a reference if they wish but should not give negative reasons for this. Staff should avoid disclosing sensitive information about an individual without consent such as information about their health. When writing a reference staff should be able to justify any statement they make.

11. Subject Access Requests

Data subjects have the right to request access to the personal information TEC holds about them, as outlined in the Individual Rights section above. Requests should be submitted using the **Subject Access Request (SAR)** form (Appendix 1).

TEC does not normally charge a fee for responding to a SAR. A fee may be charged only where the request is manifestly unfounded or excessive, or where repeated requests require significant administrative effort. In such cases, TEC may refuse the SAR and the DPL will provide a written explanation. Individuals may submit a complaint using TEC's online complaints form (see the Complaints and Appeals Policy). If unsatisfied after exhausting TEC's complaints process, individuals may complain to the Information Commissioner's Office (ICO).

TEC aims to acknowledge SARs within 72 hours and will provide the requested information within one month, in accordance with UK GDPR. Where a request is complex or involves large volumes of data, TEC may extend the deadline by a further two months; the DPL will notify the data subject if an extension is required.

All types of personal data may be requested in a SAR subject to the exemptions below, including Prevent data on the individual in question. Data subjects may ask to review their record of payments, and they may request an explanation of any decision made about them using automated methods such as AI.

There are certain types of information TEC may refuse to provide in response to a SAR. These include:

- Information that identifies a third party, unless TEC can redact or obtain consent from that person.
- Data relating to the prevention or detection of a crime, or the arrest or prosecution of offenders.
- Information that would prejudice ongoing investigations, including safeguarding investigations, academic misconduct investigations, or disciplinary proceedings.
- Information that would reveal confidential references written by TEC staff or external referees about the data subject.
- Information relating to negotiations with the data subject, where disclosure would prejudice those negotiations (e.g., fee disputes, contract negotiations, settlement discussions).
- HR plans for staff promotion, redundancy, or organisational restructuring.
- Examination scripts (where used), which are exempt under the Data Protection Act 2018.
- Data that is already anonymised, as it no longer constitutes personal data.
- Information that would cause serious harm to the physical or mental health of the data subject or another person.
- Safeguarding records, where disclosure would place a child or vulnerable adult at risk.
- Information subject to legal professional privilege, such as advice from TEC's solicitors.
- Data collected for research purposes, where it has been anonymised or where erasure or access would seriously impair the research and appropriate safeguards are in place.

11.1. Exemptions when responding to SARs

Where a Subject Access Request (SAR) includes special category data, TEC may withhold the data by applying the exemptions in Schedule 2 of the Data Protection Act 2018 that are illustrated in Table 5.

Table 5 Exemptions Under Schedule 2 DPA 2018

Exemptions	Explanations
Increased safeguarding risk	Disclosure would increase the risk of harm to a child or vulnerable adult.
Serious harm	Disclosure would cause serious harm to the physical or mental health of the requester or another person.
Crime detection or prevention	Disclosure would prejudice an ongoing investigation or law-enforcement activity.
Third-party identification	Disclosure would reveal personal data about another individual who has not consented.
Confidential references	Disclosure would reveal confidential references written by TEC or external referees.
Legal privilege	Disclosure would reveal legally privileged communications or documents prepared for legal proceedings.
Research integrity	Disclosure would seriously impair research, undermine academic integrity, or breach research confidentiality safeguards.

Any exemption applied must be recorded under the appropriate section in the Data Log.

12. Direct Marketing

TEC will only use personal data for direct marketing purposes where the data subject has provided explicit, opt-in consent in accordance with the UK GDPR and the Privacy and Electronic Communications Regulations (PECR). Consent for marketing is separate from consent for enrolment or service delivery, and individuals may withdraw their consent at any time. TEC will not send marketing communications without valid consent and will provide clear unsubscribe options in all marketing messages.

13. Data Breaches

Students, staff and all other stakeholders should report any potential data breaches to the DPL. The DPL or nominated representative will investigate and if a breach has occurred, the DPL will inform the Head of Partnerships and Compliance, the Head of Operations and/or the Managing Director. In line with UK GDPR Article 33, the DPL ensures that any breach which is likely to result in a risk to individuals' rights and freedoms is reported to the ICO within 72 hours of TEC becoming aware of it.

The UK GDPR identifies three types of data breaches as follows:

- Confidentiality: when unauthorised people or organisations gain access to person data
- Integrity: when data has been altered or corrupted by unauthorised people
- Availability: when data is unavailable due to temporary or permanent loss

The DPL or nominee will ensure that data breaches that are detected are reported to the Senior Management Team (SMT) using the **Data Breach Report (DBR)** form (Appendix 2). The DPL will also ensure the data breach is recorded under Section 4 of the **Data Log** (Appendix 3). The DPL will include in the report to the SMT on steps taken to mitigate any harm due to the breach and to prevent further breaches from occurring.

14.Data Log

The TEC **Data Log** (Appendix 3) is the central record of all actions taken by TEC in relation to data protection. It ensures compliance with UK GDPR, the Data Protection Act 2018, ICO guidelines and Office for Students (OfS) Condition E2. The Data Log should be treated as the single source of truth for all data protection activity which enables TEC to meet the following objectives:

- Demonstrate accountability under UK GDPR
- Provide evidence during ICO or OfS audits
- Track patterns in data breaches
- Ensure consents and opt-outs are respected
- Ensure disclosures are lawful
- Ensure Subject Access Requests are completed within statutory guidelines and deadlines
- Ensure exemptions under the Data Protection Act 2018 Schedule 2-4 are adhered to lawfully
- Ensure special category data under UK GDPR Article 9 is processed lawfully
- Ensure internal access to personal data is appropriate

The **Data Protection Lead (DPL)** is responsible for maintaining and updating the Data Log. Staff may provide information to the DPL, but only the DPL (or a designated nominee) may enter or amend records. The DPL must ensure the Data Log is accurate, complete, and up to date at all times. The Data Log provides a complete audit trail of five categories of data as illustrated in Table 6.

Table 6 Data Log Sections and Types

#	Data Log Sections	Types of data
1	Consent including Opt-Outs	A data subject gives, denies or withdraws their consent for disclosure of personal data where disclosure is not mandatory.
2	Disclosure to third parties	The personal data of one or more data subjects has been shared with third party individuals or organisations.
3	Subject Access Requests (SARs)	A data subject wishes to have access to the personal data TEC holds on them and they have submitted a SAR form to the DPL.
4	Data Breaches	There has been a breach of confidentiality, integrity or availability of personal data.
5	Internal Access Requests	Staff have requested access to personal data of individuals that may be for legitimate reasons but is outside of their usual area of responsibility and is therefore subject to restrictions.

Each entry in the data log must meet the following conditions.

- Be recorded on the same day the action occurs or as soon as possible after this
- Include all required fields in the relevant section
- Be factual, neutral, and free from assumptions
- Include supporting evidence where relevant (e.g., email consent, police request, SAR form)
- Be stored securely as a password protected CSV or excel spreadsheet and accessible only to authorised staff

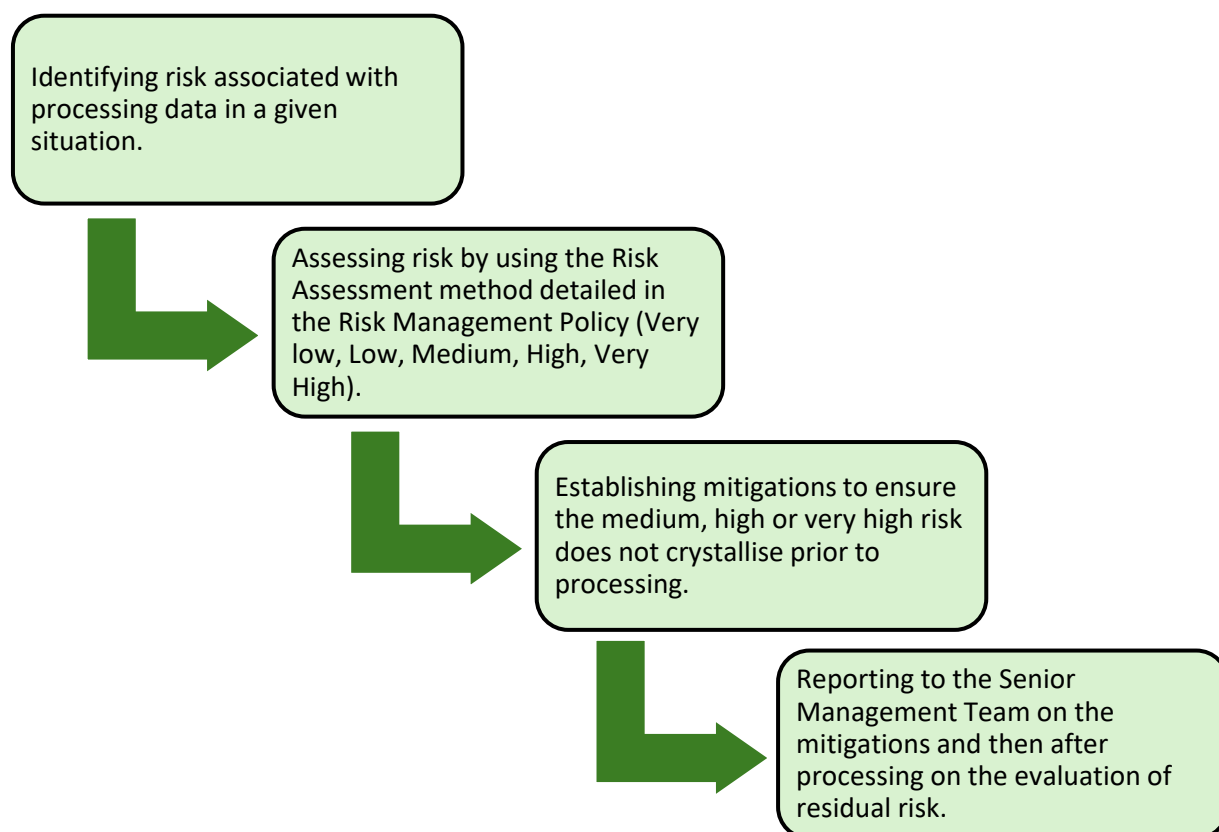
15.Data Protection Impact Assessment (DPIA)

There may be situations in which TEC is required to process the personal data of individuals in ways that involve a higher-than-usual risk to their rights and freedoms as data subjects. The following is a non-exhaustive list of potentially high-risk processing situations:

- The introduction of a new data management system at TEC (e.g. MIS, VLE, CRM)
- Conducting a large-scale collection or analysis of special category data (e.g. during the creation of an Access and Participation Plan)
- Reviewing Safeguarding and Prevent systems
- Migrating personal data to cloud-based platforms
- Establishing new data sharing-systems arrangements with a partner organisation

In any such situation, the Data Protection Lead (DPL) or nominee will conduct a Data Protection Impact Assessment (DPIA), in accordance with UK GDPR Article 35. This assessment involves the following four stages:

15.1. DPIA Process



16.Complaints

Data subjects can make a complaint in relation to any of the issues raised in this policy, the Data Privacy Notice and Consent Policy or the Data Retention Policy. Applicants or students should use the Complaints and Appeals Policy on the TEC website and Staff should follow the Staff Grievance Policy in the Staff Handbook.

Data subjects may claim compensation from TEC for any material or non-material damage caused by a breach of data protection legislation.

17.Information Security

All data hard copies with personal information on data subjects is held in locked drawers or rooms at TEC's Head Office. Hard copy data collected at different Study Centres is always locked away at the point of collection and transported to the Head Office for safe storage as soon as possible. All data stored digitally is password protected and appropriately backed up. Access to all personal data is restricted only to those who need it for the purpose it was collected.

18.Training

All staff are required to complete Data Protection Training within one month of starting their employment. The Data Protection Lead is required to undertake enhanced training and to provide workshops on the TEC Data Protection Policy annually.

19.Annual Report

The Head of Partnerships and Compliance (HPC) monitors the implementation of this policy and produces an annual GDPR Compliance Report and Data Breach Incident Report for the Senior Management Team. The HPC reports to the Audit and Risk Committee and the Board of Governors on Data Protection when requested and provides a section on Data Protection in the Annual Operational Review submitted to the Senior Management Team and Board of Governors. See the Quality Assurance Framework for more information.

Appendix 1 Subject Access Request Form (SARF)

If you wish to request access to the personal data that TEC holds about you, please complete the form below and email it to the Data Protection Lead: it-support@trenteducation.ac.uk
For use by applicants, students, staff, alumni, contractors, visitors, and any other TEC data subjects.

Your personal details			
Full name			
Date of birth			
Student ID if applicable			
Address			
Email			
Phone			
Tick all that apply			
Access to all personal data TEC holds about me			☐
Explanation of automated decision-making involving my data			☐
Review of payment/financial records			☐
Confirmation of attendance or enrolment			☐
Access to special category data under UK GDPR Article 9: SEND, health, mental health, safeguarding, Prevent (please specify)			☐
Access to any other specific personal data (please specify):			☐
Preferred format for your data			
PDF			☐
CVS			☐
Excel			☐
Word			
Printed hard copy			☐
Do you wish TEC to send your data to another organisation	YES	☐	NO ☐
If yes, provide the details of the organisation			
Name of the organisation			
Contact/Email			
You must show proof of ID to the DPL or their nominee, such as your Passport or Driving Licence before data can be released.			
Declaration			
I confirm that the information provided in this form is accurate and that I am the individual requesting access to my personal data.			
Signature			
Date			
For office use only			
Fully approved	☐	Partially approved	☐ Denied ☐

Appendix 2 Data Breach Report Form

Complete this form immediately if you believe a data breach has occurred and submit it to the Data Protection Lead: it-support@trenteducation.ac.uk.

For use by staff, students, contractors, or visitors reporting a suspected or confirmed breach.

Details of the person reporting the breach				
Full name				
Role				
Phone				
Date the breach was detected				
Is it ongoing	YES	☐	NO	☐
Describe what happened				
Category of data breach				
Confidentiality	Unauthorised access by someone		☐	
Integrity	Unauthorised corruption or alternation		☐	
Availability	Data loss or temporarily unavailable		☐	
What type of data was involved - tick all that apply				
Names	☐	Addresses	☐	
Contact details	☐	Financial information	☐	
SEND/Health	☐	Ethnicity	☐	
Age and/or Sex	☐	Prevent related	☐	
Student analytics (e.g. results)	☐	Staff records	☐	
Other (Specify)				
Provide details of all the individuals affected				
Name(s)	Role(s) (e.g. student or staff member)			
What steps were taken to contain or mitigate the breach and prevent it reoccurring				
Has the ICO been notified	YES	☐	NO	☐
What systems were involved – tick all that apply				
Email	☐	Staff HR system	☐	
MIS / student records system	☐	USB or portable device	☐	
Paper documents	☐	Cloud storage	☐	
Other (Specify)				
I confirm that the information provided in this form is accurate to the best of my knowledge				
Signature				
Date				

Appendix 3 Data Log

#	Data Log Section	Types of entries recorded in this section
1	Consent including Opt-Outs	(a) Name and role of data subject (e.g. student, staff, contractor) (b) Staff member recording the consent (e.g. DPL or nominee) (c) Special category data involved (SEND, health, mental health, safeguarding, Prevent) (d) Whether Article 6 UK GDPR consent (for ordinary personal data) or Article 9 UK GDPR explicit consent (for special category data) was obtained for disclosure to a third party (e) Consent given, denied (opt-out) or withdrawn (f) Consent to share data with whom: name of employer, sponsor, academic institution (g) Consent for what purpose (marketing, research, reference (performance/conduct data, etc.)) (h) Identity verification completed (e.g. Passport ID provided) (i) Method of consent (email or signed declaration for explicit consent of special category data or verbal verification of all other data) (j) Evidence of consent or opt-out (emails, signed declaration, note of verbal communication)
2	Disclosure to third parties	(a) Name and role of data subject (e.g. students, staff, contractor) (b) Staff member authorising the disclosure (c) What data is being disclosed (d) Special category data included (SEND, health, mental health, safeguarding, Prevent) (e) Article 6 UK GDPR lawful basis (consent, contract, legal obligation, vital interest, public task, Home Office request, etc) (f) Article 9 UK GDPR lawful basis (explicit consent, substantial public interest) (g) Disclosure to whom (employer, sponsor, academic institution, police, Home Office, awarding body/organisation) (h) Purpose of disclosure (i) Evidence of lawful basis (email request, Section 29 police request, Home Office request) (j) Identity verification completed (if required)
3	Subject Access Requests (SARs)	(a) Name and role of data subject (e.g. students, staff, contractor) (b) Date/time SAR form received (c) Identity verification completed (d) Special category data included in the SAR (e) Lawful basis of exemptions applied when refusing a SAR (safeguarding, risk of serious harm, third party data, confidential references, legal privilege, crime prevention, research) (f) Details of SAR (all data, specific data, automated decisions, payments) (g) SAR approved, partially fulfilled or refused (h) Date SAR closed (i) Evidence (SAR form, emails)

#	Data Log Section	Types of entries recorded in this section
4	Data Breaches	(a) Name and role of person reporting the data breach (b) Date/time breach reported (c) Date data breach report form completed (d) Special category data involved in the breach: SEND, health, mental health, safeguarding, Prevent (e) Has the risk level increased due to a breach of Article 9 data (yes/no) (f) Has the affected individual(s) been notified (yes/no) (g) Category of breach (confidentiality, integrity, availability) (h) Description of breach (i) Type of data involved (personal, special category, financial, academic, staff HR, Prevent) (j) Individuals affected (k) Has ICO been notified (yes/no) (l) Date breach resolved (m) Evidence (Data Breach Report form, emails, screenshots)
5	Internal Access Requests	(a) Name of staff member requesting access (b) What system access is requested (MIS, HR system, finance system, cloud storage) (c) Special category data requested: SEND, health, mental health, safeguarding, Prevent (d) Purpose of access (e) Lawful basis to access (contract, public task, legitimate interests, substantial public interest) (f) Identity verification completed (if relevant) (g) Date/time of access (h) Access approved or denied (i) Evidence (system logs, access request emails)